WARRANTY ATLAS · Virginia (VA)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Va. Code Ann. § 46.2-1571(A), (B)(5), (F); Va. Code Ann. § 46.2-1573 (hearings, civil penalties); Va. Code Ann. § 46.2-1573.01 (attorney fees); Va. Code Ann. § 46.2-1507 (civil penalty)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 46.2-1571(A)(1)
Mfr-backed service contract	**Conditional**	Statute silent on time / not established	§ 46.2-1571(A)(1)
CPO warranty	**Conditional**	Statute silent on time / not established	§ 46.2-1571(A)(1)
Independent service contract	**Not addressed**	-	§ 46.2-1571(A)(1)

Hourly rate: Compensation must be at least 'the amounts charged by the dealer ... to retail customers for nonwarranty service'. Increases are requested in writing and based on 100 consecutive ROs or all ROs over a 90-day period, 'whichever occurs first'. Only retail ROs count; menu pricing, internal work, group or special-event discounts and insurance repairs are excluded.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Rejected in writing for stated reasons; denial only for good cause (e.g., nonwarranty repair, lack of material documentation, fraud, misrepresentation); failure to meet claim-processing requirements is not grounds if reasonable documentation substantiates the…	§ 46.2-1571(A) (unnumbered paragraph after A.6)
Payment	30 days after submission. Dealer filing deadline: Silent.	
Chargebacks	6 months; fraud: Limits do not apply if manufacturer has 'reasonable cause' (bona fide…. Window runs from the date of the claim (rental-reimbursement claims: 6 months from payment of the related repair claim). No collection until 40 days after final notice following internal processes; dealer may petition the Commissioner within 30 days, and a pe…	§ 46.2-1571(A) (paragraph after A.6); collection stay § 46….
Rate resubmission	Silent. Sample: 100 ROs or 90 days (fewer of the two samples). Excluded: Discounted / promotional, Internal, Insurance-paid.	§ 46.2-1571(A)(3); retail definition (A)(2)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: Commissioner of the Department of Motor Vehicles hearing (petition wi….	§ 46.2-1571(F); § 46.2-1573(A)
Penalties	Commissioner hearing with manufacturer burden (§§ 46.2-1571(F), 46.2-1573(A)); circuit court award of reasonable attorney's fees and costs after a Commissioner finding of violation (§ 46.2-1573.01). Civil penalty up to $1,000 per day of noncompliance with a Commissioner decision (§ 46.2-1573(E)); Board civil penalty up to $1,000 per vi…	Va. Code Ann. §§ 46.2-1571(F), 46.2-1573, 46.2-1573.01, 46.2-1507
Audit procedures	Audit climate score 56/100 (Very high restrictiveness; chargeback limits 56/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 46.2-1571(A) (unnumbered paragraph after A.6)): "Claims for dealer compensation shall be paid within 30 days of dealer submission or within 30 days of the end of an incentive program or rejected in writing for stated reasons."*
Chargebacks *(§ 46.2-1571(A) (paragraph after A.6); collection stay § 46.…): "Any chargebacks for recall or warranty parts or service compensation and service incentives shall only be for the six-month period immediately following the date of the claim"*
Rate *(§ 46.2-1571(A)(3); retail definition (A)(2)): "shall be requested by the dealer in writing, shall be based on 100 consecutive repair orders or all repair orders over a 90-day period, whichever occurs first."*
Factory time *(§ 46.2-1571(A)(1)): "Compensation of a dealer for recall or warranty parts, service, and diagnostic work shall not be less than the amounts charged by the dealer for the manufacturer's or distributor's original parts, service, and diagnostic work to retail customers"*

Notes

2025 ch. 558 (and ch. 546) struck the clause deeming dealer-rate compensation 'reasonable due to the substantial number of repair orders reviewed, unless the manufacturer can show that the amounts are not reasonable' (strike-through confirmed in enrolled PDF), so the statute now states no rate-challenge standard. 2025 also added: diagnostic time includes technician time communicating with manufacturer technical assistance; rental-reimbursement claims in 30-day increments with 6-month audit; recall-part pricing at highest price in prior 12 months; recall parts returnable within 12 months. No rate-submission response deadline or frequency limit. No compensation rule for residential-use RV components.

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